

HOUSE No. 2212

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to patient opioid notification.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/14/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>11/3/2025</i>

HOUSE No. 2212

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 2212) of Steven S. Howitt relative to the issuing of the initial prescription of Schedule II controlled dangerous substances or other opioid pain relievers. Mental Health, Substance Use and Recovery.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1990 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to patient opioid notification.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 18C of Chapter 94C of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking the section in its entirety and inserting in place thereof the
3 following new section:-

4 Prior to issuing the initial prescription of a Schedule II controlled dangerous substance or
5 any other opioid pain reliever which is a prescription drug in a course of treatment for acute or
6 chronic pain and again prior to issuing the third prescription of the course of treatment, a
7 practitioner shall discuss with the patient, or the patient's parent or guardian if the patient is
8 under 18 years of age and is not an emancipated minor, the risks associated with the drugs being
9 prescribed, including but not limited to: (1) the risks of addiction and overdose associated with

10 opioid drugs and the dangers of taking opioid drugs with alcohol, benzodiazepines, and other
11 central nervous system depressants; (2) the reasons why the prescription is necessary; (3)
12 alternative treatments that may be available; and (4) risks associated with the use of the drugs
13 being prescribed, that there is a risk of developing a physical or psychological dependence on the
14 controlled dangerous substance, and that the risks of taking more opioids than prescribed, or
15 making sedatives, benzodiazepines or alcohol with opioids, can result in fatal respiratory
16 depression. The practitioner shall include a note in the patient's medical record that the patient or
17 the patient's parent or guardian, as applicable, has discussed with the practitioner the risks of
18 developing a physical or psychological dependence on the control dangerous substance and
19 alternative treatments that may be available.

20 This section shall not apply to a prescription for a patient who is currently in active
21 treatment for cancer, receiving hospice care from a licensed hospice or palliative care, or is a
22 resident of a long term care facility, or to any medications that are being prescribed for use in the
23 treatment of substance abuse or opioid dependence.